



## CONSTITUTION

### 1. Name

The club shall be called **Linslade Galaxy F.C.** (the Club)

### 2. Objects

The objects of the Club shall be to provide facilities, promote the game of Association Football, to arrange matches and social activities for its members and the community.

### 3. Status of Rules

These rules (the Club Rules) form a binding agreement between each member of the Club.

### 4 Rules and Regulations

(a) The members of the Club shall so exercise their rights, powers and duties and shall, where appropriate, use their best endeavours to ensure that others conduct themselves so that the business and affairs of the Club are carried out in accordance with the Rules and Regulations of The Football Association Limited ("The FA"), Bedfordshire Football Association to which the Club is affiliated ("Parent County Association") and Competitions in which the Club participates, for the time being in force.

(b) No alteration to the Club Rules shall be effective without prior written approval by the Bedfordshire Football Association. The FA and Bedfordshire Football Association reserve the right to approve any proposed changes to the Club Rules.

(c) The Club will also abide by The FA's Child Protection Policies and Procedures, Codes of Conduct and the Equality Policy as shall be in place from time to time.

### 5. Club Membership

(a) The members of the Club from time to time shall be those persons listed in the register of members (the Membership Register) which shall be maintained by the Club Secretary.

(b) Any person who wishes to be a member must apply on the Membership Application Form and deliver it to the Club. Election to membership shall be at the discretion of the Club Committee and granted in accordance with the anti-discrimination and equality policies (*the Equality Policy*) which are in place from time to time. An appeal against refusal may be made to the Club Committee in accordance with the Complaints Policy and Procedures in force from time to time. Membership shall become effective upon an applicant's name being entered in the Membership Register.

(c) In the event of a member's resignation or expulsion, his or her name shall be removed from the Membership Register.

(d) The FA and Bedfordshire Football Association shall be given access to the Membership Register on demand.

## **6. Annual Membership Fee**

(a) An annual fee payable by each member shall be determined from time to time by the Club Committee and set at a level that will not pose a significant obstacle to community participation. Any fee shall be payable on a successful application for membership and annually by each member. Fees shall not be repayable.

(b) The Club Committee shall have the authority to levy further subscriptions from the members as are reasonably necessary to fulfil the objects of the Club.

## **7. Resignation and Expulsion**

(a) A member shall cease to be a member of the Club if, and from the date on which, he/she gives notice to the Club Committee of his/her resignation. A member whose annual membership fee or further subscription is more than two (2) months in arrears shall be deemed to have resigned.

(b) The Club Committee shall have the power to expel a member when, in its opinion, it would not be in the interests of the Club for them to remain a member. An appeal against such a decision may be made to the Club Committee in accordance with the Complaints Procedure in force from time to time.

(c) A member who resigns or is expelled shall not be entitled to claim any, or a share of any, of the Club Property.

## **8. Club Committee**

(a) The Club Committee shall consist of the following Club Officers: Chairperson, Vice Chairperson, Treasurer, Secretary /Minutes Secretary, Club Welfare Officer and up to five other members, elected at an Annual General Meeting.

(b) Each Club Officer and Club Committee Member shall hold office from the date of appointment until the next Annual General Meeting ("AGM") unless otherwise resolved at an Extraordinary General Meeting ("EGM"). One person may hold no more than two positions of Club Officer at any time. The Club Committee shall be responsible for the management of all the affairs of the Club. Decisions of the Club Committee shall be made by a simple majority of those attending the Club Committee meeting. The chair of the Club Committee meeting shall have a casting vote in the event of a tie. Meetings of the Club Committee shall be chaired by the Chairperson or in their absence the Vice Chairperson. The quorum for the transaction of business of the Club Committee shall be three.

(c) Decisions of the Club Committee of meetings shall be entered into the Minute Book of the Club to be maintained by the Club Secretary.

(d) Any member of the Club Committee may call a meeting of the Club Committee by giving not less than 7 days' notice to all members of the Club Committee. The Club Committee shall hold not less than four meetings a year.

(e) An outgoing member of the Club Committee may be re-elected. Any vacancy on the Club Committee which arises between Annual General Meetings shall be filled by a member proposed by one and seconded by another of the remaining Club Committee members and approved by a simple majority of the remaining Club Committee members.

(f) Save as provided for in the Rules and Regulations of The FA, Bedfordshire Football Association, and any applicable Competition, the Club Committee shall have the power to decide all questions and disputes arising in respect of any issue concerning the Club Rules.

(g) The position of a Club Officer shall be vacated if such person is subject to a decision of The FA that such person be suspended from holding office or from taking part in any football activity relating to the administration or management of a football club.

## **9. Annual and Special General Meeting**

- (a) An Annual General Meeting (AGM) shall be held in each year to:
- (i) receive a report of the activities of the Club over the previous year
  - (ii) receive a report of the Club's finances over the previous year
  - (iii) elect the members of the Club Committee
  - (iv) consider any other business.
- (b) Nominations for election of members as Club Officers or as members of the Club Committee shall be made in writing by the proposer and seconder, both of whom must be existing members of the Club, to the Club Secretary not less than 7 days before the AGM. Notice of any resolution to be proposed at the AGM shall be given in writing to the Club Secretary not less than 7 days before the Meeting.
- (c) An EGM may be called at any time by the Club Committee and shall be called within 21 days of the receipt by the Club Secretary of a requisition in writing signed by not less than five members stating the purposes for which the Meeting is required and the resolutions proposed. Business at an EGM may be any business that may be transacted at an AGM.
- (d) The Secretary shall send to each member at their last known contact address (which may be an email address), or by posting a notice on the Club's website, written notice of the date of a General Meeting (which may be an AGM or an EGM) together with the resolutions to be proposed at least 14 days before the Meeting.
- (e) The quorum for a General Meeting shall be four.
- (f) The Chair, or in their absence, the Vice Chair or a member selected by the Club Committee, shall take the chair. Each member present shall have one vote and resolutions shall be passed by a simple majority. In the event of an equality of votes the Chair of the Meeting shall have a casting vote.
- (g) The Club Secretary, or in their absence a member of the Club Committee, shall enter Minutes of General Meetings into the Minute Book of the Club.

## **10. Club Teams**

At its first meeting following each AGM the Club Committee shall appoint a Club member to be responsible for each of the Club's football teams. The appointed members shall be responsible for managing the affairs of the team. The appointed members shall be responsible for managing the affairs of the team. The appointed members shall present to the Club Committee at its last meeting prior to an AGM, a written report of the activities of the team.

## **11. Club Finances**

- (a) A bank account shall be opened and maintained in the name of the Club (the "Club Account"). Designated account signatories shall be the Club Secretary, the Treasurer and two other designated Committee members. No sum shall be drawn from the Club Account except by cheque signed by two of the three designated signatories. All monies payable to the Club shall be received by the Treasurer and deposited in the Club Account.
- (b) The income and assets of the Club (the Club Property) shall be applied only in furtherance of the objects of the Club. The distribution of profits or proceeds arising from the sale of Club Property to members is prohibited.
- (c) The Club Committee shall have power to authorise the payment of remuneration and expenses to any member of the Club (although a Club shall not remunerate a member for playing) and to any other person or persons for services rendered to the Club.

(d) The Club may provide sporting and related social facilities, sporting equipment, coaching, courses, insurance cover, medical treatment, away match expenses, post match refreshments and other ordinary benefits of Community Amateur Sports Clubs as provided for in the Finance Act 2002.

(e) The Club may also in connection with the sports purposes of the Club:

- (i) sell and supply food, drink and related sports clothing and equipment
- (ii) employ members (although not for playing) and remunerate them for providing goods and services, on fair terms set by the Club Committee without the person concerned being present
- (iii) pay for reasonable hospitality for visiting teams and guests
- (iv) indemnify the Club Committee and members acting properly in the course of the running of the Club against any liability incurred in the proper running of the Club (but only to the extent of its assets).

(f) The Club shall keep accounting records for recording the fact and nature of all payments and receipts so as to disclose, with reasonable accuracy, at any time, the financial position, including the assets and liabilities of the Club. The Club must retain its accounting records for a minimum of six years.

(g) The Club shall prepare an annual Financial Statement in such format as shall be available from The FA from time to time. The Financial Statement shall be verified by an independent, appropriately qualified accountant and shall be approved by members at General Meeting. A copy of any Financial Statement shall, on demand, be forwarded to The FA.

(h) The Club Property, other than the Club Account, shall be vested in not less than two and no more than four custodians, one of whom shall be the Treasurer (the Custodians), who shall deal with the Club Property as directed by decisions of the Club Committee and entry in the Minute Book shall be conclusive evidence of such a decision.

(i) The Custodians shall be appointed by the Club in a General Meeting and shall hold office until death or resignation unless removed by a resolution passed at a General Meeting.

(j) On their removal or resignation a Custodian shall execute a Conveyance in such form as is published by The FA from time to time to a newly elected Custodian or the existing Custodians as directed by the Club Committee. The Club shall, on request, make a copy of any Conveyance available to The FA. On the death of a Custodian, any Club Property vested in them shall vest automatically in the surviving Custodians. If there is only one surviving Custodian, an EGM shall be convened as soon as possible to appoint another Custodian.

(k) The Custodians shall be entitled to an indemnity out of the Club Property for all expenses and other liabilities reasonably incurred by them in carrying out their duties.

## **12. Dissolution**

(a) A resolution to dissolve the Club shall only be proposed at a General Meeting and shall be carried by a majority of at least three-quarters of the members present.

(b) The dissolution shall take effect from the date of the resolution and the members of the Club Committee shall be responsible for the winding up of the assets and liabilities of the Club.

(c) Any surplus assets remaining after the discharge of the debts and transferred to another Club, a Competition, Bedfordshire Football Association or The FA for use by them for related community sports.